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Degree Documents FAQs

We hope this Q&A answers your questions about providing degree documents. If you need more help, please message our team using the secure portal. We are always here to assist!

1. **Q: What degree document is required for my NIW case?**

   A: In general, the following documents of your most advanced degree are required for an NIW case:

   - **Official diploma**
   - **Official full transcript**
   - **Degree evaluation** (if your degree is not from a U.S. university)

   Please note that you should only need to submit the documents of your most advanced degree. That being the case, if you have multiple degrees, you should only need to submit documents of your highest degree obtained.

2. **Q: What degree document is required for my EB1A/EB1B/O1 case?**

   A: In general, you should **only** need to submit the **official diploma** of your **most advanced degree** for your EB1A/EB1B/O1 case.

3. **Q: I have multiple degrees. Do I need to submit documentation for all of them?**

   A: No, if you hold more than one degree, it is generally not necessary to submit documentation for all of them. In general, you should only need to submit the documentation of your **most advanced degree**.

4. **Q: My degree document(s) is/are not in English. Is it okay?**

   A: All documents submitted to the USCIS must be in English or accompanied by a certified English translation. You or a colleague fluent in both English and the original language of the document may complete a certified translation by submitting the following:

   1. The document in its original language
   2. A separate document containing the English translation
   3. A translation affidavit

   A translation affidavit template is available in Appendix C of your Client Packet. If you or your colleague chooses to prepare the translation, please complete the affidavit as well. However, **please do NOT sign the affidavit until your Petition Letter is finalized** and we have confirmed all the necessary details. We will provide further instructions when the affidavit is needed.

   If you prefer not to translate the document yourself, you may use a professional translation service. Unfortunately, we are unable to recommend specific providers.

5. **Q: My diploma/transcript bears a stamp stating that the contents of the translation have not been verified. Is this going to be an issue?**

   A: Degree translation documents from certain countries, most commonly Iran, may include stamps from both the individual who translated the documents into English and the government office that certified them. In some instances, the certification stamp may indicate that its purpose is to verify the authenticity of the original document, not to assess the accuracy of the translation.

   We have encountered cases where officers mistakenly interpreted such certification stamps as translation stamps and issued Requests for Evidence (RFEs), questioning the legitimacy of the translation. To avoid this issue, we typically recommend submitting another certified English translation without the problematic stamps that could be

misconstrued as casting doubt on the accuracy of the translation.

6. **Q: My university does not issue transcripts for my degree. What can I provide instead?**

   A: It is not uncommon for certain graduate programs not to issue a transcript. Below are several alternate documents that may be submitted in its place:

   1. **Letter from the Registrar:** A signed and dated letter from your university's registrar confirming the degree awarded, the field of study, the duration of study, and the date of conferral may be used in place of a transcript. We will provide you with a letter template and further instructions if this letter is needed for your case.
   2. **Diploma Supplement:** Some universities issue a diploma supplement that provides detailed academic information. In most cases, a diploma supplement is an acceptable substitute for a transcript.
   3. **Certificate of Studies:** Certain institutions may provide a certificate that includes key academic details typically found in a transcript or registrar's letter. Depending on the content, such a certificate may also serve as a suitable official academic record.

7. **Q: I have a document that my university issued along with my diploma, but I am not sure if it is a transcript. What exactly is a transcript?**

   A: A transcript is an official academic record that lists the courses a student has completed. Transcripts are typically issued by a university's registrar's office, often in a sealed envelope. However, for I-140 petitions, the USCIS does not require that transcripts be submitted in a sealed envelope.

   If you are not sure whether a certain document will suffice, please feel free to upload it to our portal for our review.

8. **Q: I have a transcript or an academic record that was issued before my degree's conferral. Is this okay to use?**

   A: We strongly recommend submitting a transcript or an alternate academic record issued after the official conferral date of your degree, and that document should also clearly state that the degree has been awarded. Otherwise, the records may appear incomplete and can possibly be challenged by the USCIS, per our experience.

   If your transcript or the alternate academic record was issued before the conferral of your degree, we recommend requesting an updated version from your university's registrar to avoid any scrutiny of your case.

9. **Q: My diploma, transcript, and/or degree evaluation list different conferral dates or have inconsistent information. Will this be an issue?**

   A: We recommend submitting documents with consistent and accurate information. If you believe that your degree documentation has inconsistent information, please let us know and upload the documents for our review. We will provide you with further instructions as necessary.

10. **Q: Can I have my degree evaluation or transcript mailed to your office?**

    A: In general, it is **not necessary** to have your degree documents sent directly to our office. We recommend having your transcript or degree evaluation sent to your own address and then uploading a scanned copy to our server, so that you can also have a copy of the document. However, we understand that some universities or credential evaluators may only issue documents directly to a third party and not to the applicant. If that is the case, please send us a message, and we will provide you with our mailing address and receipt information.

11. **Q: I found a degree evaluation provider from NACES.org, but there are several different options I can select from. What should I choose?**

A: To qualify as an advanced degree professional, a **general evaluation** is typically sufficient. A "course-by-course" or "GPA-based" evaluation is not required.

It is also important to ensure that your evaluation assesses the **U.S. equivalency** of your degree, as some evaluators may provide assessments based on Canadian or other standards. If the evaluation does not explicitly state the U.S. equivalency of your degree, you should request a revised or new evaluation that does.

Please note that you should only need to have your most advanced degree evaluated.

12. **Q: My university will not issue my official diploma until after I have paid off my student loans or completed a term of service. Can I submit a provisional diploma instead?**

    A: We generally do NOT recommend submitting a provisional diploma, as doing so carries the risk that the USCIS may issue a Request for Evidence (RFE) asking for the official version. Below are some possible alternatives to proceed in such a case:

    1. **Claiming a different degree**

       If you hold multiple degrees, you may claim another degree of yours to meet your petition requirement, so long as you can submit the required official degree documentation.

    2. **Claiming a Bachelor's degree and 5 years of experience (only for NIW)**

       If you can provide all required official degree documentation of your bachelor's degree, and have proof of at least 5 years of post-baccalaureate experience in your field, you may be able to qualify as an advanced degree professional without submitting documentation for a graduate-level degree. If you wish to claim this for your NIW petition, please send us a message and we will further evaluate your case.

    3. **Claiming exceptional ability instead of an advanced degree**.

       If you can provide all required official degree documentation of your bachelor's

degree, and your credentials meet certain requirements, then we could potentially argue that you have "exceptional ability." To claim exceptional ability, we need to show that you meet at least 3 out of 6 regulatory criteria. Because there are more requirements that need to be met when claiming exceptional ability, filing with this case type may increase the chances of USCIS issuing a Request for Evidence (RFE). Therefore, we would recommend instead pursuing one of the above alternatives whenever possible. If you wish to claim this for your NIW petition, please send us a message and we will further evaluate your case.

If you are unable to proceed with any of the above options, we can still file your case by submitting the provisional diploma. Nevertheless, please once again note that this may possibly increase the risk of your case receiving an RFE.